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Case Number: 25PSCV01066 Hearing Date: July 29, 2026 Dept: 6

CASE

NAME: Account

Management Services, Inc. v. China Nortel North America Energy Development, Inc., et al.

Plaintiff

Account Management Services, Inc.'s Motion to Amend Complaint

TENTATIVE

RULING

The Court DENIES Plaintiff Account Management Services, Inc.'s Motion to Amend Complaint without prejudice.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a debt collection case. On March 25, 2025, plaintiff Account Management Services, Inc. (Plaintiff) filed this action against defendants China Nortel North America Energy Development Inc. (China Nortel), Esther Zhang aka Xiu Lian Zhang (Zhang) (collectively, Defendants), and Does 1 through 5, alleging causes of action for common counts (4x) and breach of contract.

On June 26, 2026, Plaintiff moved for leave to amend the Complaint. The Motion is unopposed.

LEGAL

STANDARD

Code of Civil

Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule

3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of

Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

DISCUSSION

Plaintiff seeks leave to file a

First Amended Complaint to allege facts regarding Defendant Zhang executing a personal guaranty of the debt which prior counsel omitted from the Complaint. Plaintiff

contends good cause exists to allow amendment because Plaintiff seeks to clarify legal theories and seeks the same ultimate relief. Plaintiff contends the proposed amendments are made in good faith and are necessary to fully and accurately present Plaintiff's claims. Plaintiff further contends there is no undue prejudice to Defendants and that the case is not set for trial.

The Court finds Plaintiff's Motion

fails to comply with the requirements of Rule 3.1324 of the California Rules of Court. Although Plaintiff submitted a copy of the proposed First Amended Complaint, Plaintiff did not identify the proposed allegations to be deleted and added. (Cal. Rules of Court, rule 3.1324, subd. (a).) Plaintiff also did not provide a declaration setting forth the effect of the amendment, why it is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason why the request for amendment was not made earlier. (Id., rule 3.1324, subd. (b).)

Based on the foregoing, the Court DENIES the Motion without prejudice.

CONCLUSION

The Court DENIES Plaintiff Account Management Services, Inc.'s Motion to Amend Complaint without prejudice.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.